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February 25, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 147

By: Pederson of the Senate

and

Newton of the House

An Act relating to administration of elections; amending 26 O.S. 2021, Section 3-130, which relates to post-election audits; clarifying language; requiring Secretary of the State Election Board to direct all counties to conduct post-election audits for specified elections; modifying definition; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 3-130, is amended to read as follows:

Section 3-130. A. The Secretary of the State Election Board shall have the authority to direct the secretary of a county election board to conduct a post-election audit of election results for any election, for the purpose of maintaining the security of the election system by ensuring that voting devices and software used in a particular election correctly tabulated votes. The Secretary shall direct the secretary of the county election board in each

1 county to conduct a post-election audit following elections held on
2 dates set forth in Sections 1-101, 1-102, 1-103, and 20-101 of this
3 title.

4 B. The method, timing, and procedures for conducting a post-
5 election audit shall be determined by the Secretary of the State
6 Election Board.

7 C. The secretary of a county election board shall report the
8 findings of a post-election audit to the Secretary of the State
9 Election Board, and such report shall be available to the public.

10 D. The Secretary of the State Election Board may promulgate
11 policies, rules, and procedures to implement the requirements of
12 this section.

13 E. For the purposes of this title, a "post-election audit" ~~is~~
14 ~~defined as~~ means a manual or electronic examination of ~~a limited~~
15 ~~number of~~ ballots by a secretary of a county election board or other
16 authorized election officials following an election. A post-
17 election audit shall be conducted only at the direction of the
18 Secretary of the State Election Board and only subject to the
19 Secretary's ~~previously promulgated~~ prescribed policies, rules, or
20 procedures.

21 SECTION 2. This act shall become effective November 1, 2025.

22 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
23 February 25, 2025 - DO PASS AS AMENDED BY CS
24